

COMMONWEALTH OF MASSACHUSETTS

BARNSTABLE, ss.

SUPERIOR COURT DEPARTMENT
CIVIL ACTION NO.

SEASHORE POINT – DEACONESS
CONDOMINIUM TRUST,
Plaintiff,

vs.

PROVINCETOWN RENTALS AT SEASHORE
POINT, LLC,
Defendant,

and

WILMINGTON SAVINGS FUND SOCIETY,
FSB, as OWNER TRUSTEE of VFS AEGIS
TRUST,
Defendant/Party-in-Interest.

COMPLAINT

PRELIMINARY STATEMENT

1. This is an in rem action brought by the organization of unit owners of a condominium pursuant to G.L. c. 183A, §§ 6(a) and 6(c) and G.L. c. 254, §§ 5 and 5A, to establish and enforce a lien for unpaid common expenses. This action further seeks a determination of the priority of the unit owner organization's lien under G.L. c. 183A, § 6(c).

JURISDICTION

2. This Court has original jurisdiction over this matter pursuant to G.L. c. 254, § 5.

PARTIES

3. The Plaintiff, Seashore Point – Deaconess Condominium Trust ("Condominium Trust"), was established by Declaration of Trust, dated May 22, 2012, and recorded with the Barnstable County Registry of Deeds ("Registry") in Book 26359, Page 245, which

Condominium Trust is the organization of unit owners for Seashore Point – Deaconess Condominium, a condominium established by Master Deed, dated May 22, 2012, and recorded with the Registry in Book 26359, Page 216 (“Condominium”). The Condominium is located in Provincetown, Barnstable County, Massachusetts. The Condominium Trust brings this action pursuant to its powers in the said Declaration of Trust and/or in G.L. c. 183A, § 10(b)(4). Additionally, it brings this action on behalf of all other parties in interest pursuant to G.L. c. 254, § 5.

4. The Defendant, Provincetown Rentals at Seashore Point, LLC (“Defendant”), is the record owner of Unit 211 at the Condominium (“Unit”), pursuant to a Unit Deed dated December 27, 2022, and recorded with the Registry in Book 35568, Page 92. The Unit has an address of 100 Alden Street, Provincetown, Barnstable County, Massachusetts 02657. The Defendant’s principal place of business is located at 10 Cabot Place, Stoughton, Massachusetts 02072. The Defendant’s Resident Agent is Benjamin Berkowitz, with an address of 10 Cabot Place, Stoughton, Norfolk County, Massachusetts 02072.

5. The Defendant/Party-in-Interest, Wilmington Savings Fund Society, FSB, not in its individual capacity but solely as Owner Trustee of VFS Aegis Trust (“Wilmington”), has a principal place of business located at 1905 Kramer Lane, Suite B700, Austin, Texas 78758. Wilmington is the holder of a first mortgage of record upon Unit 211, dated March 15, 2023, and recorded with the Registry in Book 35689, Page 162, as affected by Assignment of Mortgage, dated April 11, 2023, and recorded with the Registry in Book 35833, Page 279, as further affected by Assignment of Mortgage, dated August 25, 2023 and recorded with the Registry in Book 36033, Page 190.

FACTUAL ALLEGATIONS

6. Pursuant to G.L. c. 183A, § 6, and the applicable provisions of the Condominium's governing documents, there is a lien against the Unit in the amount of Six Thousand Seven Hundred and Twenty-Two Dollars and 13/100 (\$6,722.13) (hereinafter, "common expenses").

7. Pursuant to G.L. c. 183A, § 6(a), the lien includes attorneys' fees and costs incurred by the Condominium Trust in pursuing this matter in accordance with said provisions.

8. Pursuant to G.L. c. 183A, § 6(c), the Condominium Trust gave the Defendant notice by certified and first-class mail.

9. Pursuant to G.L. c. 183A, § 6(c), the Condominium Trust gave notice to Wilmington by certified and first-class mail.

COUNT I – AGAINST THE UNIT

10. Pursuant to the provisions of G.L. c. 183A, §§ 6(a) and 6(c), the common expenses due as aforesaid, and such attorneys' fees and costs as may additionally accrue hereafter, constitute liens upon the Unit.

COUNT II – ESTABLISHING THE PRIORITY OF THE LIEN

11. Pursuant to the provisions of G.L. c. 183A, § 6(c), the lien on the Unit has priority over all other liens and encumbrances except: (a) liens and encumbrances recorded prior to the recording of the aforesaid Master Deed; (b) liens for real estate taxes and other municipal assessments or charges; and (c) any first mortgage of record.

12. Pursuant to the provisions of G.L. c. 183A, § 6(c), the Condominium Trust's lien is prior to any first mortgage of record to the extent of monthly common expense assessments

that became due during the six (6) months prior to the institution of this action plus all attorneys' fees and costs incurred by the Condominium Trust in the enforcement thereof.

PRAYER FOR RELIEF

WHEREFORE, the Condominium Trust prays that this Honorable Court enter judgment for the Condominium Trust and against the Defendant and Wilmington as follows:

- (a) declare that there is a lien upon the Unit in the amount as may be found;
- (b) declare that the lien is entitled to the priority as provided for by law;
- (c) order the sale of the Unit to satisfy, in whole or in part, the declared lien; and
- (d) grant such other relief as may be just and proper.

Respectfully submitted,

SEASHORE POINT – DEACONESS
CONDOMINIUM TRUST

By its attorney,

/s/ Thomas O. Moriarty

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